

SENATE BILL NO. 12

INTRODUCED BY J. TREBAS

BY REQUEST OF THE DEPARTMENT OF ADMINISTRATION

A BILL FOR AN ACT ENTITLED: "AN ACT ELIMINATING THE BOARD OF COUNTY PRINTING AND TRANSFERRING ITS DUTIES TO THE DEPARTMENT OF ADMINISTRATION; PROVIDING RULEMAKING AUTHORITY; AMENDING SECTIONS 18-7-401, 18-7-402, 18-7-404, AND 18-7-405, MCA; AND REPEALING SECTIONS 2-15-1026 AND 18-7-403, MCA."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 18-7-401, MCA, is amended to read:

"18-7-401. Purpose of part. The purpose of this part is to provide:

- (1) for the ~~board of county printing~~ department of administration to set maximum prices that may be charged for county legal advertising; and
- (2) for the purchase of county printed forms and materials."

Section 2. Section 18-7-402, MCA, is amended to read:

"18-7-402. Definition. Unless the context requires otherwise, in this part "~~board~~" "department" means the ~~board of county printing~~ department of administration provided for in ~~2-15-1026~~ 2-15-1001."

Section 3. Section 18-7-404, MCA, is amended to read:

"18-7-404. Establishment of maximum prices -- RULEMAKING. (1) The ~~board~~ department shall adopt, by rule, and publish a schedule of maximum prices to be charged for county legal advertising IS \$14 FOR EACH FOLIO FOR THE FIRST INSERTION, WITH A FOLLOW-ON RATE OF \$12 FOR EACH FOLIO FOR ANY SUBSEQUENT INSERTION.

- (2) (i) The ~~board~~ department shall conduct hearings when required to determine maximum rates for county legal advertising. Notice of the hearing must be mailed to the Montana association of counties and

1 ~~the Montana newspaper association~~ ANNUALLY ADJUST THE MAXIMUM PRICES IN SUBSECTION (1) USING THE LOWER
2 OF AN INFLATION FACTOR OF 2% OR THE ACTUAL INFLATION DETERMINED BY THE CONSUMER PRICE INDEX FOR ALL
3 URBAN CONSUMERS AS PUBLISHED BY THE BUREAU OF LABOR STATISTICS OF THE UNITED STATES DEPARTMENT OF
4 LABOR. THE ADJUSTED PRICES BECOME EFFECTIVE ON MARCH 1 OF EACH YEAR.

5 (ii) THE DEPARTMENT SHALL PUBLISH THE ADJUSTED PRICES AS A RULE.

6 (3) The ~~board~~ department shall deliver, free of charge, to each board of county commissioners in
7 this state a copy of every schedule of maximum prices adopted by the ~~board~~ department within 30 days of its
8 publication, ~~together with a notice of the date fixed by the board~~ department ~~when the prices will be effective.~~

9 (4) The county commissioners shall require each establishment that prints county legal advertising
10 to verify that:

11 (a) the legal advertisement was published on the dates ordered by the county and in the style set
12 by the ~~board~~ department; and

13 (b) the price was not in excess of the maximum price set by the ~~board~~ department.

14 (5) The ~~board~~ department may not establish maximum prices for printed county forms."
15

16 **Section 4.** Section 18-7-405, MCA, is amended to read:

17 **"18-7-405. Adoption of printing standards.** The ~~board~~ department shall adopt necessary standards
18 for typeface, type size, type style, and type leading for county legal advertising."
19

20 NEW SECTION. Section 5. Repealer. The following sections of the Montana Code Annotated are
21 repealed:

22 2-15-1026. Board of county printing -- composition -- allocation -- compensation.

23 18-7-403. Meetings of board of county printing.
24

25 NEW SECTION. Section 6. Transition. A person appointed to the board of county printing shall
26 serve until [the effective date of this act].
27

- END -